

SOARING FIRs ON COURT ORDERS

- In 2009, of 2,10,000 FIRs lodged in Rajasthan, **41,000 were on court orders**.
- At 30%, this is the highest **increase** over the previous year: 31,500 FIRs were lodged on court orders in 2008.
- **Up to June 2009, there were 17,700 such cases**. In the second half, there were another 23,000.
- In 2000 there were just 13,000 such cases; in 2003 just 16,000. By 2008 this had **doubled to 31,500**.

HIGH INCIDENCE OF FALSE CASES

- **40%** of cases lodged through the courts end up as false, which is twice the average for all cases.
- Of **12,000 false cases** amongst those filed on court's orders, trial for lodging fake case allowed in just 400.

COURTS OBJECT TO CLOSURE

- A Rajasthan court has issued notices to the police when cases in the IOC file were described as false or fit for closure.
- The Rajasthan High Court ordered CBI probes in cases registered under 156(3) involving DGP M.K. Devrajan and IAS officer Sanjay Dixit when the complainants questioned the investigations. It questioned the closure of the case on Dausa collector L.C. Aswal for forcing an employee to work at home.

States **RAJASTHAN**

Wrong Arm of THE LAW

The explosively growing trend of making the police file FIRs on court orders is subverting the cause of justice

By Rohit Parihar

What's common between Rajasthan Chief Minister Ashok Gehlot, his predecessor Vasundhara Raje, Madhya Pradesh Chief Minister Shivraj Singh Chouhan, artist M.F. Husain and MP chairman Lalit Modi? They all have criminal cases lodged against them on court orders. Rajasthan epitomises this trend, with the state's courts ordering thousands of FIRs every year. During 2009, 41,000 FIRs were lodged on court orders, which amounts to one fifth of the total criminal cases registered during the year. This is the highest ever in the decade and an increase of 30 per cent over the 31,500 cases lodged in 2008, thus burdening the police and judiciary alike. In 2000, only 13,000 FIRs were lodged via this route.

On the face of it, thousands

of people approaching courts for a basic FIR registration under Section 156 (3) of the Code of Criminal Procedure (CrPC), appears to be a case of police inaction in not registering an FIR thus forcing a genuine complainant to approach the judiciary. The state police, which is under fire for a 10 per cent increase in overall crime in 2009, claims that it is too liberal in allowing FIRs. A threefold increase since 1999 in cases registered under court orders, however, rubbishes this claim. The rising figures raise questions over the effectiveness of the police, and legal and judicial systems in the state. This extraordinary provision of a court route is meant to be used sparingly to help a genuine victim.

INDIA TODAY investigations reveal that nearly every complaint filed before the court blames the police for not lodging a FIR. Unlike in Madhya

